Ordinance No._____
8/24/2021
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ORDINANCE NO. 569

AN ORDINANCE ABOLISHING ORDINANCE NO. 529, 396, AND 513 AND SETTING FORTH REGULATIONS FOR THE ACTIVITIES OF DANGEROUS DOGS AND POTENTIONALLY DANGEROUS DOGS OF THE RECTOR CODE OF ORDINANCES, REDEFINING SAME AS THE DANGEROUS ANIMAL ORDINANCE, PROVIDING NEW DEFINITIONS, REQUIRING INSURANCE FOR SAID VICIOUS ANIMALS, AND FOR OTHER PURPOSES.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS:

WHEREAS, the City of Rector hereby is abolishing previous vicious dog ordinance to allow for a safer option for the Citizens of Rector.

WHEREAS, in connection with providing safeguards and protections for the citizens they hereby propose the following adoption of rules and regulations.

Now therefore, be it Ordained by the City Council of the City of Rector, State of Arkansas:

1. Section 1 of the Code of Rector Ordinances shall read as follows:

Definitions.

The following words and phrases shall, for the purpose of this division, have the following meaning:

Owner. Every person, firm, partnership or corporation owning, keeping of harboring a dangerous animal as defined herein within the geographical limits of the city.

Dangerous Animal.

1. Any mammal, amphibian, fish, reptile or fowl which is of a species which, due to size, vicious nature or other characteristics would constitute a

danger to human life, physical well-being, or property, including but not limited to, lions, tigers, leopards, panthers, bears, wolves, apes, gorillas, monkeys of a species whose average adult weight is 20 pounds or more, foxes, elephants, alligators, crocodiles, and snakes which are venomous or otherwise present a risk of serious physical harm or death to human beings as a result of their nature or physical makeup including, but not limited to, boa constrictors, Madagascar ground boas, green and yellow anacondas, Cuban boas, Indian pythons, reticulated pythons and all members of the family phythonidae that exceed six feet in length.

2. Any dog or cat having a disposition or propensity to attack or bite any person or animal without provocation is hereby defined as a "dangerous animal." For the purposes of this chapter, where the official records of the Chief Animal Control Officer or City Clerk indicate a dog or cat has bitten any person or persons, it shall be prima facie evidence that said dog or cat is a dangerous animal.

3. Any pit bull dog. "Pit bull dog" is defined to mean any and all of the following dogs:

   a. The Staffordshire Bull Terrier breed of dogs,

   b. The American Staffordshire Terrier breed of dogs;

   c. The American Pit Bull Terrier breed of dogs;

   d. Dogs which have the appearance and characteristics of being predominately of the breeds of dogs known as Staffordshire Bull Terrier, American Pit Bull Terrier, or American Staffordshire Terrier.

4. Any domesticated dog that has in its known genetic history and/or formal pedigree crossbreeding with the wolf species to include, but not be limited to, animal referred to as wolf-hybrids or wolf-mix breeds or the breed known as Tundra Shepherd shall constitute prima facie evidence the animal is prohibited by this section. For the purposes of this section all references to animals described herein shall be to wolf-hybrids

Person. "Person" includes any natural person, association, partnership, organization or corporation.

2. Section 2 of the code of Rector Ordinances shall read as follows:

Prohibition and Destruction of dangerous animals in certain cases.

It shall hereinafter be unlawful for any person, firm or corporation to keep within the corporate limits of the city any dangerous animal as defined herein unless the animal is securely confined indoors or confined within a pen upon the premises of the owner. It shall be a violation of the division to permit the dangerous animal to run at large and thereby constitute a danger to other persons or animal. Any person shall have the right to kill any such dangerous animal which attacks or attempts to attack that person or any other person or domesticated animal without in any way being liable to the owner or owners of such dangerous animal.

3. Section 3 of the Code of Rector Ordinances shall read as follows:

Regulations for keeping dangerous animals

a. No person owning, harboring or having the care of a dangerous animal shall allow or permit such dangerous animal to go unconfined on the premises of such person, nor shall the person allow or permit such dangerous animal to be loose unless it is securely leashed with a leash no longer than four (4) feet in length with said person being in control of said dangerous animal at all times. No person shall permit a dangerous animal to be kept on a chain, rope or other type of leash outside its kennel or pen unless that person is in physical control of said leash. A dangerous animal may not be leashed to an inanimate object such as trees, post, buildings, etc. In addition, all dangerous animals on a leash outside their kennel or pen must be muzzled by a muzzling device sufficient to prevent such dangerous animal from biting persons or other animals. No dangerous animals shall be outside of its pen or kennel unless under the control of a person who is at least eighteen (18) years of age.

b. All dangerous animals shall be securely confined indoors or in a securely enclosed in a locked pen or kennel, except when leashed and muzzled as above provided. Such pen, kennel or structure must have secure sides and a secure top attached to the sides. All structures used to confine said animals must be locked with a key or combination lock when such animals are within the structure. Such structure must have a secure bottom or floor attached to the sides of the pen, or the sides of the pen must be embedded in the ground no less than two (2) feet. all structures erected to house said animals must comply with all zoning and building regulations of the City. All such structures must be adequately lighted and ventilated to keep it in a clean and sanitary condition.

c. No dangerous animal may be kept on a porch, patio, or in any part of a house or structure that would allow the animal to exit such building on its

own volition. In addition, no such animal may be kept in house or structure where the windows are open or where screen windows or screen doors are the only obstacle preventing the animal from exiting the structure.

4. Section 4 of the Code of Rector Ordinances shall read as follows:

Notice of keeping Dangerous Animals.

a. Signs – All owners, keeper or harborers of dangerous animals within the City shall within ten (10) days of the effective date of this Ordinance display in prominent place on their premises a sign easily readable by the public using the words "Beware of Dog". In addition, a similar sign is required to be posted on the kennel or pen of such animal.

b. Upon the written complaint of any person that a person owns or is keeping or harboring a dangerous animal in violation of this chapter in the City, the Chief Animal Control Officer or his or her authorized Deputy, shall forthwith cause the matter to be investigated; and if after investigation the facts indicate that such person named in the complaint is in fact the owner or is keeping or harboring any such dangerous animal in the City, he shall forthwith send written notice to such person requiring such person to safely remove said animal from the City within five days of the date of said notice. Notice as herein provided shall not be required where such dangerous animal has previously caused serious physical harm or death to any person or has escaped and is at large in which case the Chief Animal Control Officer shall cause said animal to be immediately seized and impounded, according to this Section, or killed if seizure and impoundment are not possible without risk of serious physical harm or death to any person.

5. Section 5 of the Code of Rector Ordinances read as follows:

Seizure and Impounding of Dangerous Animals.

The Chief Animal Control Officer or his/her authorized deputy shall forthwith cause to be seized and impounded any dangerous animal, where the person owning, keeping or harboring such animal has failed to comply with the notice in this section. Upon a seizure and impoundment, said animal shall be delivered to place of confinement which may be with any organization which is authorized by law to accept, own, keep or harbor such animals.

If during the course of seizing and impounding any such animal, the animal poses a risk of serious physical harm or death to any person, such person or persons authorized by the Chief Animal Control Officer may render said animal immobile by means of tranquilizers or other safe drugs; or if that is not safely possible, then said animal may be killed.

6. Section 6 is hereby created as follows:

Insurance

All owners, keepers or harborers of registered Pit Bulls or wolf-hybrids must within ten days of the effective date of this Ordinance acquire public liability insurance in a single incident minimum amount of $100,000.00 for bodily injury to or death of any person or persons for damage to property owned by any persons which may result from the ownership, keeping or maintenance of such animal. The owner, keeper or harborer of such animal must be prepared to show proof of said insurance of said registered Pit Bulls or wolf-hybrids at all times. Failure to maintain insurance as set out herein shall be a violation of this ordinance.

7. Section 7 is hereby created as follows:

Penalty

Any person, firm or corporation violating this division shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not less than $200.00 nor more than $500.00 for the first occurrence, not less that $500.00 nor more than $750.00 for the second occurrence and $1,000.00 for the third or subsequent occurrence.

8. Section 8 is hereby created to read as follows:

Citations

The Animal Control Officer(s) and the Rector City Police Department as well as any other certified law enforcement officer with appropriate jurisdiction may issue citations for the violation of this Ordinance.

9. All other ordinances in conflict herein shall be null and void.

10. If any part of this ordinance is found to be illegal or unconstitutional , only that portion shall be severable, and the remaining parts that are valid shall be sustained in full force.

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PASSED AND APPROVED this 4th **day of** Oct **, 2021**

Teresa L. Rope
Mayor

ATTEST:

Shelia Marler
City Clerk